



**CITY COUNCIL CLOSED & REGULAR SESSION
AGENDA**

Beaumont Financing Authority

Beaumont Successor Agency (formerly RDA)

Beaumont Utility Authority

Beaumont Parking Authority

Beaumont Public Improvement Authority

**Community Facilities Districts: 93-1, 2016-1, 2016-2, 2016-3, 2016-4, 2019-1, 2021-1, 2022-1, and
2023-1**

Tuesday, November 5, 2024

Closed Session: 5:00 PM Regular Meeting: 6:00 PM

550 E. Sixth Street, Beaumont, CA

Materials related to an item on this agenda submitted to the City Council after distribution of the agenda packets are available for public inspection in the City Clerk's office at 550 E. 6th Street during normal business hours.

MEETING PARTICIPATION NOTICE

This meeting will be recorded for live streaming as well as open to public attendance. Please use the following link during the meeting for live stream access: beaumontca.gov/livestream

Public comments will be accepted using the following options.

1. Written comments will be accepted via email and will be read aloud during the corresponding item of the meeting. Public comments shall not exceed three (3) minutes unless otherwise authorized by City Council. Comments can be submitted anytime prior to the meeting as well as during the meeting up until the end of the corresponding item. Please submit your comments to: nicolew@beaumontca.gov with "Public Comment" in the subject line.
2. Phone-in comments will be accepted by joining a conference line prior to the corresponding item of the meeting. Public comments shall not exceed three (3) minutes unless otherwise authorized by City Council. Please use the following phone number to join the call **(951) 922 - 4845**.
3. In-person comments are accepted by notifying the City Clerk using a provided Request to Speak Form prior to the start of the Public Comment Period. Public comments shall not exceed three (3) minutes unless otherwise authorized by City Council.

In compliance with the American Disabilities Act, if you require special assistance to participate in this meeting, please contact the City Clerk's office using the above email or call **(951) 572 - 3196**. Notification 48 hours prior to a meeting will ensure the best reasonable accommodation.

CLOSED SESSION

A. CALL TO ORDER

Mayor Fenn, Mayor Pro Tem Lara, Council Member Voigt, Council Member White, Council Member Martinez

B. PUBLIC COMMENTS REGARDING CLOSED SESSION

- B.1 Conference with Labor Negotiators Pursuant to Government Code Section 54957.6.**
City Designated Representatives City Manager Elizabeth Gibbs and Administrative Services Director Kari Mendoza. Employee Organizations:
Police Managers
SEIU
Police Officers Association
Managers/Professional/Technical
- B.2 Conference with Real Property Negotiators Pursuant to Government Code Section 54956.8**
Property: Approximately 6.26 acres of vacant land described as North of West 4th street and South of SR 60 and East of Beaumont Crossroads Logistics with APN 424-010-007.
Agency Negotiator: City Manager Elizabeth Gibbs or her designee.
Negotiating Parties: City of Beaumont as potential Purchaser and LASSEN DEVELOPMENT PARTNERS, LLP, a Delaware limited liability partnership as seller.
Under negotiation: Price and Terms.
- B.3 Conference with Legal Counsel – Anticipated Litigation – Potential Initiation of litigation pursuant to Government Code Section 54956.9(d)(4):**
Two Potential Cases.

C. ADJOURNMENT TO CLOSED SESSION

REGULAR SESSION

D. CALL TO ORDER

Mayor Fenn, Mayor Pro Tem Lara, Council Member Voigt, Council Member White, Council Member Martinez

Report out from Closed Session
Action on any Closed Session Items
Action of any Requests for Excused Absence
Invocation
Pledge of Allegiance
Adjustments to the Agenda
Conflict of Interest Disclosure

E. ANNOUNCEMENTS / RECOGNITION / PROCLAMATIONS / CORRESPONDENCE

- E.1 Waste Management Recycling All Star Awards**
- E.2 Retirement of Police Captain Greg Fagan**

F. PUBLIC COMMENT PERIOD (ITEMS NOT ON THE AGENDA)

Any one person may address the City Council on any matter not on this agenda. If you wish

to speak, please fill out a "Public Comment Form" provided at the back table and give it to the City Clerk. There is a three (3) minute time limit on public comments. There will be no sharing or passing of time to another person. State Law prohibits the City Council from discussing or taking actions brought up by your comments.

G. CONSENT CALENDAR

Items on the consent calendar are taken as one action item unless an item is pulled for further discussion here or at the end of action items. Approval of all Ordinances and Resolutions to be read by title only.

G.1 Ratification of Warrants

Recommended Action:

Ratify Warrants dated:

October 4, 2024

October 11, 2024

October 18, 2024

G.2 Approval of Minutes

Recommended Action:

Approve Minutes dated October 15, 2024

G.3 Accept Public Improvements and Exonerate Maintenance Bond

Maintenance bond exoneration for street improvements associated with Tract Map No. 27971-1, 27971-2, 31468-4, 27971-3, 27971-4, 27971-6, 27971-8 and sewer improvements associated with Tract Map No. 27971-4, 27971-5, 27971-6, 27971-8.

Recommended Action:

Accept the public improvements, authorize the mayor to sign the Certificate of Acceptance, and authorize staff to issue a bond exoneration letter for maintenance bonds for (Project / Bond Number / Improvement):

- Tract No. 27971-1 / 827481 / Street
- Tract No. 27971-2 / 827482 / Street
- Tract No. 31468-4 / 105158623 / Street
- Tract No. 27971-3 / 0827483 / Street
- Tract No. 27971-4 / PB03010407102-M / Street
- Tract No. 27971-6 / PB03010407116-M / Street
- Tract No. 27971-8 / PB03010407117-M / Street
- Tract No. 27971-4 / 1154350-M / Sewer
- Tract No. 27971-5 / PB03010405608-M / Sewer
- Tract No. 27971-6 / 1154351-M / Sewer
- Tract No. 27971-8 / 1154353-M / Sewer

G.4 Performance Bond Exoneration

Performance and payment bond exoneration for sewer improvements associated with

Tract Map No. 31462 Phase 4A, Tract Map No. 31470-4, for street improvements associated with Tract Map No. 31470-3, 4, 5, 6, for street and storm drain improvements associated with Tract Map No. 31470, and for monumentation associated with Tract Map No. 27971-2, 3 and 9.

Recommended Action:

Authorize City staff to issue a Bond Exoneration Letter for Performance and Payment Bonds and Accept Maintenance Security for (Project / Bond Number / Improvement / Maintenance Bond Number):

- Tract Map No. 31462-4A / 1001124455 / Sewer
- Tract Map No. 27971-2 / 1155909 / Monumentation
- Tract Map No. 27971-3 / 1155910 / Monumentation
- Tract Map No. 31470-3,4,5 and 6/ 929644887 / Street
- Tract Map No. 27971-9 / CMS0348854 / Monumentation
- Tract Map No. 31470-4 Pa 30/ 92964897 / Sewer
- Tract Map No. 31470 / 929598681 / Street and Storm Drain

**G.5 Notice of Completion for the VFW Re-Roof Project (ISFB-11)
Completion of the VFW Post Re-Roof (ISFB-11), located at 450 East Fourth Street, Beaumont CA.**

Recommended Action:

Authorize the Mayor to execute the Notice of Completion for the VFW Re-roof Project (ISFB-11); and

Authorize the City Clerk to file the Notice of Completion with the County Recorder's Office.

**G.6 City Hall Ramps Construction Contingency (CIP F-03)
Increase City Manager's authority to sign change orders to KGG Concrete, Inc.**

Recommended Action:

Increase the construction contingency for City Hall Ramps Project (CIP F-03) in an amount of \$20,000 and authorize the City Manager to sign construction change orders with KGG Concrete, Inc. for a total amount not to exceed \$30,000, for a total construction amount of \$420,000.

**G.7 FY2024-2025 1st Quarter Grants Report
Quarterly report on grant activity for the period of July 1, 2024, through September 30, 2024.**

Recommended Action:

Receive and file report.

**G.8 Memorandum of Understanding between the City of Beaumont and Riverside County Department of Environmental Health for Vector Control Services
To replace previously approved Memorandum of Understanding of June 2023.**

Recommended Action:

Approve the Memorandum of Understanding between the City of Beaumont and the County of Riverside Department of Environmental Health for a five (5) year period for Vector Control Services.

- G.9 Quarterly Report of City Manager Purchases and Contract Awards**
Quarterly report pursuant to Beaumont Municipal Code Sections 3.01.030(B), 3.01.040(B), and 3.01.050(B).

Recommended Action:
Receive and file.

H. YOUTH COUNCIL REPORT

Beaumont Youth Council Report Out and City Council Direction

I. PUBLIC HEARINGS

Approval of all Ordinances and Resolutions to be read by title only.

- I.1 Adoption of Development Impact Fee Nexus Study and Development Impact Fee Schedule**

Continued public hearings for the proposed adoption of the 2024 Development Impact Fee Nexus Study and Development Impact Fee Schedule.

Recommended Action:

Staff recommends adopting at the maximum justified fees with no phasing and holding a public hearing to:

Waive the full reading and adopt by title only, "A Resolution of the City Council of the City of Beaumont Adopting the City of Beaumont Development Impact Fee Study Update Dated October 31, 2024".

Hold a second Public Hearing:

Waive the full reading and adopt by title only, "A Resolution of the City Council of the City of Beaumont Adopting the City of Beaumont 2024 Development Impact Fee Schedule Based on the Findings Set Forth in the City of Beaumont Development Impact Fee Study Update Dated October 31, 2024".

- I.2 Continue a Public Hearing of Request to Appeal Notice of Finding Under Development Agreement**

Tri Pointe Homes has requested an appeal of the City Manager's Notice of Finding Under Development Agreement dated August 17, 2004.

Recommended Action:

Hold a Public Hearing;

If necessary, continue the Request to Appeal Notice of Finding Under Development Agreement dated August 17, 2004 to the City Council Meeting of December 3, 2024

- I.3 Public Hearing Vacating a Portion of Euclid Avenue and a Portion of Third Street**
Consideration of a resolution vacating a portion of Euclid Avenue between Third Street and 560 feet south of Third Street and a portion of Third Street between Euclid Avenue and 300 feet east of Euclid Avenue.

Recommended Action:

Waive the full reading and adopt by title only, "A Resolution of the City of Beaumont, Vacating a portion of Euclid Avenue between Third Street and 560 feet south of Third Street and a portion of Third Street between Euclid Avenue and 300 feet east of Euclid Avenue."

J. ACTION ITEMS

Approval of all Ordinances and Resolutions to be read by title only.

- J.1 Approve a Second Amendment to the Professional Services Agreement with PlaceWorks to Provide Additional Environmental Services for Capital Improvement Project P-10 in the Amount of \$28,765 and Authorize the City Manager to Approve any Necessary Change Ord**
Second Amendment to the Professional Services Agreement to include National Environmental Policy Act (NEPA) compliance services for the Stewart Park Improvement Project (CIP P-10).

Recommended Action:

Approve a Second Amendment to the Professional Services Agreement with PlaceWorks to Provide Additional Environmental Services for Capital Improvement Project P-10 in the amount of \$28,765 and Authorize the City Manager to Approve any Necessary Change Orders in an Amount Not to Exceed \$2,876.

- J.2 Award a Professional Services Agreement to The Converse Professional Group for Stewart Park Geotechnical Services in an Amount not to Exceed \$39,255 - Capital Improvement Project (CIP) P-10, Stewart Park Improvements**
Strategic Plan Target #5 Quality of Life/Well-Being, Priority Level #3, Goal #6 Complete Stewart Park Improvements

Recommended Action:

Award a Professional Services Agreement to The Converse Professional Group for Stewart Park Geotechnical Services in an Amount not to Exceed \$39,255.

K. LEGISLATIVE UPDATES AND DISCUSSION

L. ECONOMIC DEVELOPMENT UPDATE

Economic Development Committee Report Out and City Council Direction

M. CITY TREASURER REPORT

Finance and Audit Committee Report Out and City Council Direction

N. CITY CLERK REPORT

- N.1 Notice of Upcoming Vacancies on Committees, Board and Commission**

O. CITY ATTORNEY REPORT

P. CITY MANAGER REPORT

Q. FUTURE AGENDA ITEMS

- Assessment for the need for additional community center(s) (April)
- Annexation Agreement with the County (Future)
- Structural integrity of truck routes (Future)
- Tracking of Planning Projects (November)
- Development Impact Fee Review Policy (January)

R. COUNCIL REPORTS

Martinez
White
Voigt
Lara
Fenn

S. ADJOURNMENT

The next regular meeting of the Beaumont City Council, Beaumont Financing Authority, the Beaumont Successor Agency (formerly RDA), the Beaumont Utility Authority, the Beaumont Parking Authority and the Beaumont Public Improvement Agency is scheduled for Tuesday November 19, 2024, at 6:00 p.m. unless otherwise posted.